

Court No. - 3

Case :- WRIT - C No. - 8620 of 2022

Petitioner :- Afroj Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Deepak Verma,J.

Heard Sri R.P.S.Chauhan, learned counsels for the petitioner, learned Standing Counsel for the respondent nos.1 & 4, Sri Rajesh Yadav, learned counsel for the respondent nos.2 & 3.

This writ petition has been filed praying for the following relief:

"(i) Issue, a writ, order, or direction in the nature of certiorari to quash the provisional assessment notice no.161 dated 25.01.2021 issued by respondent no.3 and recovery citation dated 20.12.2021 issued by respondent no.4 against the petitioner (Annexure No.1 and 2 to this writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent no.3 to consider and decide the statutory objection of the petitioner dated 24.01.2022 under the provisions of clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005 by passing speaking order after affording opportunity of personal hearing to the petitioner, provided under clause 8.1(b)(iv) of U.P.Electricity Supply code, expeditiously within some stipulated period. (Annexure no.3 to this writ petition).

Sri Rajesh Yadav, learned counsel for the respondent No.2 & 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 30.5.2022

SKD